

The Court denies the Motion to Strike statutory damages under Labor Code section 1102.5.

Statutory Damages Under Labor Code Section 1102.5

As described in the Demurrer ruling, Defendant's Demurrer as to the third cause of action was sustained without leave to amend, thus mooting this request. Motion to Strike age statutory damages under Labor Code section 1102.5 is denied.

Conclusion

As analyzed above, the **Motion to Strike is granted for the doe defendants and punitive damages allegations and denied as to all other requests. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.**

**9. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**10. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**11. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
HEARING IN RE: MOTION TO CONFIRM TRIAL DATE FILED ON 5/21/26 BY MOLLY DUGGAN, ERIK COCHRAN, AND GABRIELLA DUGGAN-COCHRAN
FILED BY:
*TENTATIVE RULING:***

Plaintiffs' motion consists of two parts: (1) Motion to Confirm Trial Date and (2) Establish Tolling Date under CCP 583.340.

- (1) The trial date of 1/28/27, 10:00am, in Dept. 34 was set by Hon. Leonard E. Marquez at the Case Management/Trial Setting Conference held on 4/28/26 in the ordinary course of the Court's case management.

At the Trial Setting Conference, Plaintiffs appeared without an attorney, and Attorney Kere Tickner appeared representing the Defendant. The trial date was not objected to by Attorney Tickner, and the date was confirmed by "Trial Setting Order/Pretrial Orders (Jury)." Also, the

Order sets an Issue Conference on 1/21/27, 9:30am, in Dept. 34. Moreover, the Order states: "Pursuant to the Order entered 4/8/26, the Trial is Phase 1 of the bifurcated trial." In addition to agreeing to the trial date, no one raised even a possibility that the date selected violated the 5 year cutoff of CCP 583.310.

Defendant and its attorneys now oppose the Motion to Confirm the Trial Date based on the argument that the 5 year statutory period (CCP 583.310) to bring the matter to trial expires on 8/12/26 and at the time the trial date was agreed to, they were unaware of the fact the 5 year period would have already expired because Defendant's attorney made an "error in calculation" relating to Covid-19 extensions. It is not clear when or the circumstances under which the Defendants or its attorneys actually determined that the trial date was set beyond the expiration of the 5 year cutoff, and the most which is stated is by one of Defendant's attorneys Kathryn Marshall, Esq. in her Declaration is that the Defendants' attorneys discovered they had made a mistake at some point following the 4/28/26 Trial Setting Conference in calculating the date the statute ran and then notified the Plaintiffs who then filed the present motion. Plaintiffs do not address this issue.

For the time being, the trial date, issue conference and related dates are confirmed.

- (2) The Court needs further information in order to rule on the tolling date under CCP 583.40. Therefore, on or before 8/20/26, each side shall file declarations under oath relating to the circumstances and date under/on which they discovered that they were mistaken about the date on which the cutoff to bring the case to trial would occur, how the mistake was made, what and when action was taken and why and whether either side did anything to mislead or prevent any action from being taken to set an earlier trial date.

Plaintiffs dispute the CCP 583.310 issue raised for a number of other reasons which will be addressed by the Court in its subsequent order hereinafter referred to.

Following receipt of the requested additional information, the Court will serve its ruling on the parties.